EARLY RELEASE FROM ACTIVE DUTY SERVICE AGREEMENT (1100)
NAVMC 11775 (01-11) (EF)
FOUO - Privacy sensitive when filled in.

1. In connection with my application for enrollment in the **"EARLY OUT"** program of the United States Marine Corps, I hereby acknowledge that:

a. A commission in the Marine Corps Reserve is held at the pleasure of the President.

b. Once accepted into the **"EARLY OUT"** program, I will be required to serve up to six (6) years in the Marine Corps Ready Reserve from the date of my acceptance, not to exceed eight (8) years total time on contract.

c. A minimum of two (2) years (24 consecutive months) must be served in a Selected Marine Corps Reserve (SMCR) unit. Upon completion of this 24 month period, any period remaining under your original Military Service Obligation (MSO) will be served in the Ready Reserve as a member of a SMCR unit, the Individual Ready Reserve (IRR) or as an Individual Mobilization Augmentee (IMA); and

d. A resignation of my Reserve commission submitted prior to completion of this Reserve commitment period will normally be rejected and, after this period, may be accepted or rejected by the President as the needs of the service may then require.

e. Upon selection into the Early Out program, an SMCR unit will be assigned based on an available billet list and Military Occupational Specialty (MOS) match.

f. United States code, Title 10, Chapter 39, Sections 671a and 671b, currently provide as follows:

671a. Members: service extension during war. Unless terminated at an earlier date by the Secretary concerned, the period of active service of any member of an armed force is extended for the duration of any war in which the United States may be engaged and for six months thereafter.

671b. Members: service extension when Congress is not in session.

(a) Notwithstanding any other provision of law, when the President determines that the national interest so requires, he may, if Congress is not in session, having adjourned sine die, authorize the Secretary of Defense to extend for not more than six months enlistment, appointments, periods of active duty, periods of active duty for training, periods of obligated service, or other military status, in any component of the armed forces, that expire before the thirtieth day after Congress next convenes or reconvenes.

(b) An extension under this section continues until the sixtieth day after Congress next convenes or reconvenes or until the expiration of the period of extension specified by the Secretary of Defense, whichever occurs earlier, unless sooner terminated by law of Executive order.

g. That Federal statutes and pertinent regulations applicable to personnel in the Marine Corps Reserve may change without notice. Such changes may affect my status as an officer candidate or commissioned officer and obligations to serve as such.

2. I consent to serve the above minimum periods of duty as a Reserve commissioned officer, and understand that a request for release from these assigned duties, prior to completion, will be considered against the needs of the Marine Corps.

Last Name, First Name, and Middle Initial of Applicant